

CHAROTAR UNIVERSITY OF SCIENCE AND TECHNOLOGY

Semester-II University Elective Theory Examination June - 2017

PH 826 Intellectual Property Rights

Date: 12/06/2017, Monday

Time: 01:30 PM To 04:30 PM

Maximum Marks: 70

Instructions:

1. Q.1 and Q.4 are compulsory.
2. Figures to right indicate marks.
3. Section wise separate answer book to be used.
4. Draw neat sketches wherever necessary.

SECTION-I

Q.1 Explain Following Terms (Any Five): 10

- (1) Intellectual Property, (2) Industrial Design, (3) Trade Secrets,
(4) Copyrights, (5) Provisional Application, (6) Design Mark and
(7) Types of Patent Application

Q.2 (A) What is an invention according to the New Indian Patent Act 1970? Which 10
inventions are not patentable under the Act. Describe with suitable examples.

OR

Q.2 Write a short notes on:

- (A) Trademark. 10
(B) What is infringement under patent regime? Discuss the various types of
infringement with suitable examples.

Q.3 Answer the following (Any three) 15

- (A) Budapest Treaty.
(B) Compare and contrast Copyright and Patent.
(C) Commercialization of Patent
(D) How research duplication can be avoided? Write supportive strategies for the
same.

SECTION-II

Q.4 Write a short notes on: 10

- (A) Write a detailed note on Patent co-operative treaty
(B) Geographical Indicators and Sources

Q.5 Give the Justification about following Inventions are Patentable or Not as 10
per Indian Patent Act 1970:

1. Patoda Sari of Patan (Gujarat).
2. New method for harvesting of crops.
3. Mathematical Formula.
4. Pen shaped lighter.
5. Touch Screen laptop.

OR

Q.5 Give the Justification about following acts considered to be an 10
Infringement or Not:

1. Utilized patented material for the preparation of new product without prior permission from Inventor.
2. Used Patented procedure without prior permission from inventor.
3. Preparation of documents for submission to other regulatory authorities.
4. Modify patented formula and prepare the same product.
5. Present patent related information in a conference without prior permission from Inventor.

Q.6 Answer the following (Any three) 15

- (A) Term of Patent.
 - (B) Benefit of patenting to the society.
 - (C) Procedure for Patent Obtain in India.
 - (D) World Intellectual Property Organization (WIPO).
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